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|           |                                                                                    | <p>On 1-30-25, the Court granted Defendants Ojin kwon, DDS; Jin Dental, Inc.; Hokyung Lee; Min Roh DDS' and Tae Keun Kim's Motion for Non-Suit. [ROA No. 825.] Therefore, the Motion is MOOT.</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>10</b> | <p><b>Ledesma vs. Massive Dollar Plus USA, LLC</b></p> <p><b>2022-01295839</b></p> | <p><b>1. Motion to Deposit Interpleader Funds by Stakeholder</b></p> <p>Cross-Complainant Western Surety Company's ("Western") unopposed motion for the following order is GRANTED:</p> <ol style="list-style-type: none"> <li>(1) Allowing Western to deposit the penal sum of the Bond (\$50,000 minus court-ordered costs and attorneys' fees, if any) with this Court;</li> <li>(2) Upon deposit of the bond funds, exonerating from all further liability and fully and forever discharging Western from any and all liability, whether known or unknown, arising from Bond No. 70961509 ("Bond") issued to "Massive Dollar Plus USA, LLC dba Premium Finance" ("Massive");</li> <li>(3) Restraining and prohibiting the prosecution of any further legal action against said Bond;</li> <li>(4) Dismissing Western from the entire Action with prejudice; and</li> <li>(5) Granting Western's request for costs and reasonable attorneys' fees in the amount of \$6,015.36.</li> </ol> <p>"Any person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims." (Code Civ. Proc. § 386, subd. (b).)</p> <p>"When a person may be subject to conflicting claims for money or property, the person may bring an interpleader action to compel the claimants to litigate their claims among themselves. [Citation.] Once the person admits liability and deposits the money with the court, he or she is discharged from liability and freed from the obligation of participating in the litigation between the claimants. [Citations.] The purpose of interpleader is to prevent a multiplicity of suits and double vexation. [Citation.]" (<i>City of Morgan Hill v. Brown</i> (1999) 71 Cal.App.4th 1114, 1122, fn. omitted.) "When a person brings an interpleader action, a two-step procedure is generally followed.</p> |

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|  | <p>First, it is determined whether the plaintiff may bring the suit and force the claimants to interplead. Second, if it is so determined, then the court will discharge the plaintiff from liability and ‘the action may proceed for the determination of the rights of the various claimants to the property which is then in the custody of the court.’ [Citation.]” (<i>Id.</i> at 1126-27.)</p> <p>Under the interpleader statute, “[a]ny amount which a plaintiff ... admits to be payable may be deposited by him with the clerk of the court at the time of the filing of the complaint or cross-complaint in interpleader” and “[a]ny interest on amounts deposited ... shall cease to accrue after the date of such deposit or delivery.” (Code Civ. Proc. § 386, subd. (c).)</p> <p>Western has established its right to interplead. On October 8, 2011, Western issued Motor Vehicle Dealership Bond No. 70961509 (“Bond”) in favor of its principal Massive pursuant to the provisions of the Vehicle Code, Sections 11710, et seq. (Kolb Decl., ¶ 4.) The Bond had a penal limit of \$50,000. (<i>Id.</i>) Western has received multiple and competing claims in excess of the Bond amount. (<i>Id.</i> at ¶¶ 5-9.) Due to these multiple and competing claims, Western was unable to determine which claimant had priority to the Bond funds. (<i>Id.</i> at ¶ 9.) Therefore, Western has shown that it is a stakeholder holding funds for which double or multiple claims have been made, which are such that they may give rise to double or multiple liability.</p> <p>Costs and fees are permitted to be awarded under Code of Civil Procedure Section 386.6. Subdivision (a) states: “A party to an action who follows the procedure set forth in Section 386 or 386.5 may insert in his motion, petition, complaint, or cross complaint a request for allowance of his costs and reasonable attorney fees incurred in such action. In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court.”</p> <p>The Court awards Western its reasonable attorneys’ fees and costs in the amount of \$6,015.36 to be deducted from the \$50,000 to be deposited by Western with the clerk of the Court. (Kolb Decl., ¶ 11; Code Civ. Proc. § 386.6 subd. (a).)</p> <p>Western to submit a proposed judgment and to give notice.</p> |
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| <p><b>11</b></p> | <p><b>Langmuir-Logan vs. Sanders</b></p> <p><b>2024-01375066</b></p> | <p><b>1. Motion for Attorney Fees</b></p> <p>Defendant Benjamin Berger motion for attorneys’ fees is GRANTED in the reduced amount of \$20,280.</p> <p>Defendant Berger seeks an award attorneys' fees against Plaintiffs in an amount of \$29,120 as the prevailing party pursuant to California's anti-SLAPP statute, Code of Civil Procedure section 425.16(c). Plaintiffs acknowledge that Defendant Berger was the prevailing parties in his anti-SLAPP motion. (See Opp, p. 2:8-10.)</p> <p>Nevertheless, Plaintiffs contend Defendant’s motion for attorney’s fees should be denied in its entirety because of Defendant’s misconduct. According to Plaintiffs, Defendant used the MSC for the sole purpose of establishing the value of Defendant Sanders’ claims so that Sanders could effectuate the sale of the claims to Defendant Collins. On this basis, Plaintiffs argue Defendant acted in bad faith in the furtherance of an unrelated commercial enterprise and, therefore, the Court should not reward Defendant for his malfeasance and duplicity related to the MSC and should deny this motion in its entirety.</p> <p>However, these are the same actions and conduct Plaintiffs allege in their complaint, which was the subject of Defendant’s anti-SLAPP motion. In ruling on that motion, the Court has already determined that all of Defendant’s conduct was protected litigation activity. Additionally, Plaintiffs fail to present any evidence of any misconduct or bad faith. Absent such evidence and in light of the Court’s prior ruling granting the anti-SLAPP motion, there is no basis upon which to find Defendant engaged in any misconduct or bad faith.</p> <p>The “prevailing defendant” on a special motion to strike “shall be entitled” to recover his or her attorney fees and costs. (Code Civ. Proc. § 425.16(c).) Thus, subject to certain exceptions, an award of attorney’s fees to a prevailing defendant is mandatory. (<i>Moore v. Kaufman</i> (2010) 189 Cal.App.4th 604, 614.) Further, the fee award is against the losing plaintiff, not the losing plaintiff’s attorney. (<i>Ibid.</i>) “[A]n award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16. ... [A]bsent circumstances rendering the award unjust, fees recoverable ... ordinarily include compensation for all hours reasonably spent, including those necessary to establish</p> |
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